



**Before the
NATIONAL TELECOMMUNICATIONS AND INFORMATION ADMINISTRATION
Washington, D.C. 20230**

COMMENTS

of the

ANA – ASSOCIATION OF NATIONAL ADVERTISERS

on the

**“Privacy, Equity, and Civil Rights Request for Comment”
Docket No. 230103-0001
RIN 0660-XC052**

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On behalf of the Association of National Advertisers (“ANA”), we provide comments (“Comments”) in response to the National Telecommunications and Information Administration’s (“NTIA”) “Privacy, Equity, and Civil Rights Request for Comment” (“RFC”).¹ NTIA notes that comments submitted in response to the RFC will help inform a forthcoming “report on whether and how commercial data practices can lead to disparate impacts and outcomes for marginalized or disadvantaged communities” (“Report”).² Specifically, NTIA indicates it intends for this RFC to examine “the extent to which the collection, processing, sharing, and use of data can lead to higher risks for some communities, exacerbate structural inequities, or contribute to their erosion.”³

The ANA emphatically opposes the use of data to discriminate against consumers. Data should not be used in unreasonable or unexpected ways, but rather to empower and benefit consumers. For this reason, well-established laws, regulations, and self-regulatory codes prohibit using data to discriminate in the context of employment, credit, insurance, health care, education admissions, financial aid, or housing, or by charging higher prices based on protected characteristics such as race, religion, national origin, sexual orientation, or gender identity. The ANA and our members are committed to using data responsibly in furtherance of consumer-preferred advertising practices that drive innovation, growth, and consumer benefit. Accordingly, the ANA supports NTIA’s goal of identifying and stopping harmful data practices, especially those practices that may disproportionately impact marginalized or disadvantaged communities. By the same token, our Comments aim to ensure that the Report does not recommend overly restrictive limitations on beneficial data practices from which diverse, marginalized, and underserved communities derive significant value.

As America’s oldest and largest advertising trade association, the ANA has long supported brands, advertisers, marketing service providers, and countless other entities that engage in advertising in their efforts to connect consumers with relevant messaging, products, and services, while protecting consumer privacy and maintaining the integrity and security of data processed through their systems. We assist our member companies in their efforts to comply with the law, including prohibitions on discrimination and mandates to avoid unfair or deceptive acts or practices. The ANA and its members support federal data standards, such as those set forth in Privacy for America’s *Principles for Privacy Legislation*, that would clearly define prohibited practices that make personal data vulnerable to breach or misuse, while preserving the benefits that come from responsible uses of data.⁴

The mission of the ANA is to drive growth for marketing professionals, brands and businesses, the industry, and humanity. The ANA serves the marketing needs of 20,000 brands by leveraging the 12-point ANA Growth Agenda, which has been endorsed by the Global CMO Growth Council. The ANA’s membership consists of U.S. and international companies, including client-side marketers, nonprofits, fundraisers, and marketing solutions providers (data science and technology companies, ad agencies, publishers, media companies, suppliers, and vendors). The ANA creates Marketing Growth Champions by serving, educating, and

¹ NTIA, *Privacy, Equity, and Civil Rights Request for Comment*, 88 Fed. Reg. 3714 (Jan. 20, 2023), located [here](#) (hereinafter, “NTIA RFC”).

² *Id.*

³ *Id.* at 3716.

⁴ Privacy for America, *Principles for Privacy Legislation*, located [here](#).

advocating for more than 50,000 industry members that collectively invest more than \$400 billion in marketing and advertising annually. Our members include small, mid-size, and large firms, and virtually all of them engage in or benefit from data-driven advertising practices that give consumers access to relevant information, messaging, and advertisements at the right time and in the right place.

Our Comments discuss the vast benefits that our members' access to and use of data provide for consumers and the modern American economy. In particular, we highlight the value of data-driven advertising and marketing practices to diverse communities, as open data access and use connects these communities to relevant messaging, services, and crucial public health efforts. Undue restrictions on data-driven advertising would pose acute risks to underserved and marginalized communities by making it difficult for service providers to target their services, as well as forcing many online information and content providers to adopt a subscription-based model that could impede open and free access to online content and services. Moreover, existing laws already prohibit discrimination and provide strong civil rights protections across digital spaces, and we encourage NTIA to recommend that the government leverage these existing forms of relief in its Report. Finally, we highlight our support for data standards that the ANA has successfully championed for years through our *Guidelines for Ethical Business Practice*, the Digital Advertising Alliance's ("DAA") Self-Regulatory Principles (collectively, "*Principles*") and Privacy for America's *Principles for Privacy Legislation*, to prevent data misuse, promote equity, and protect consumers from malicious actors.⁵

I. NTIA's Report Should Discuss the Benefits of Open Access to Data and Data Use for Consumers and the Modern American Economy

NTIA asks commenters specifically to describe the negative effects of "commercial data collection and processing practices,"⁶ particularly on "underserved or marginalized communities."⁷ However, NTIA does not explicitly solicit examples of how "commercial data and collection practices" (such as the responsible data collection and processing activities employed by the ANA's members) benefit consumers, including underserved and marginalized communities, and contribute to the economy of the whole country. Rather than focus only on the negative effects stemming from data misuse, the Report should acknowledge the myriad positive effects that responsible data use, and data-driven advertising in particular, provides to consumers and the American economy as a whole.

The Report ought to recognize that responsible data use promotes tailored information access and connects individuals, including members of marginalized and underserved communities, to vital services. For decades, advertising has been an "immensely powerful" means of informing and educating individuals, allowing important public service announcements to reach a broad audience, as well as permitting service providers, nonprofit organizations,

⁵ See The ANA, *Guidelines for Ethical Business Practice* (2020), located [here](#); The DAA, *Application of Self-Regulatory Principles to the Mobile Environment* (Jul. 2013), located [here](#); The DAA, *Self-Regulatory Principles for Multi-Site Data* (Nov. 2011), located [here](#); Privacy for America, *Principles for Privacy Legislation*, located [here](#).

⁶ Though "commercial data collection and processing practices" encompasses a broad range of practices, our Comments focus on data-driven advertising practices commonly referred to as "online-behavioral advertising" ("OBA") or personalized advertising.

⁷ NTIA RFC Question 2 at 3718 (Jan. 20, 2023).

businesses, and government entities of all kinds to inform consumers about their product and service offerings.⁸ Modern data-driven advertising practices build on this history by allowing messages to be tailored and customized based on expressed interests, characteristics, preferences, and needs. For example, open access to data and data use permits the ANA’s members to inform individuals about a new women’s center in their neighborhood, connect parents to English-as-a-second language tutors and resources, and provide discounts for local retailers and online outlets. Rather than seek to avoid these practices, individuals actually recognize and prefer the benefits of data-driven advertising.⁹ As a recent study showed, individuals value exposure to relevant advertisements when engaged in online activities, but experience dissatisfaction and frustration when viewing “non-personalized” and repetitive ads.¹⁰ Accordingly, the Report should acknowledge the particular value consumers ascribe to data-driven advertising, and ensure that the open data access and responsible use that empowers the ANA’s members to meet consumer needs can continue to flourish.

The Report should also recognize the critical value of data to the modern, ad-supported Internet. Data-driven advertising allows consumers to access the host of online resources and content for free or at a very low cost, including news, research, education and employment opportunities, video, music, games, and more. Onerous restrictions or far-reaching limitations on data access, and thus on data-driven advertising, would severely undermine these opportunities by inducing online content providers and websites to adopt a subscription-based model in order to recover the critical revenue data-driven advertising currently provides.¹¹ The result would be a fundamental shift from the egalitarian Internet we enjoy today, as subscription fees would disproportionately impact consumers with less expendable income and deprive these individuals of information access. As the RFC notes, promoting equity and increasing support for marginalized and underserved communities is a “national imperative” highlighted by the Biden Administration.¹² Therefore, NTIA should take care that the Report’s recommendations not interfere with the fundamentally equitable nature of today’s Internet by unduly restricting the data-driven advertising practices that allow Internet-based content providers and businesses to flourish.

In addition to data-driven advertising’s invaluable role in promoting equitable information access via the Internet, advertising supports a vibrant economy and employment opportunities for diverse communities. Since the advent of the modern Internet, data-driven advertising has fueled unprecedented economic growth. Today, advertising impacts nearly twenty percent of the U.S. Gross Domestic Product (“GDP”), supporting \$7.1 trillion in sales annually.¹³ This cascading impact is felt across all sectors, driving direct product sales, supplier

⁸ J. Howard Beales & Andrew Stivers, *An Information Economy Without Data*, 21 (2022), located [here](#) (quoting Nobel Laureate George Stigler).

⁹ *Id.* at 31.

¹⁰ *Id.* at 12.

¹¹ See Beales & Stivers at 16-20; Center for Data Innovation, *The Value of Personalized Advertising In Europe* (Nov. 22, 2021), located [here](#) (finding that a ban on targeted advertising in the EU “would reduce the €16 billion of spending on data-driven ads..., threatening about €6 billion of advertising income for app developers. As a result, European consumers would face the prospect of a radically different Internet: more ads that are less relevant, lower quality online content and services, and more paywalls.”)

¹² 88 Fed. Reg. at 3715 (citing Advancing Racial Equity and Support for Underserved Communities Through the Federal Government, Exec. Order No. 13985, 86 Fed. Reg. 7009 (Jan 20, 2021), located [here](#)).

¹³ IHS Markit, *The economic impact of advertising on the US economy 2018-2026* at 4 (Nov. 2021), located [here](#).

purchasing, and generating buying power.¹⁴ In addition to stimulating substantial economic activity, advertising impacts a significant percentage of employment opportunities across the country. Beyond directly employing more than half a million individuals, the advertising industry supports 28.5 million workers annually, nearly twenty percent of the working population.¹⁵ Every direct job in the advertising industry supports another fifty-one jobs throughout the economy, touching nearly all employment sectors.¹⁶ This direct and indirect employment impact means that advertising supports \$2.1 trillion in overall salaries and wages each year, empowering countless individuals to participate in the marketplace.¹⁷ NTIA should thus ensure that its Report does not contain recommendations that would overly restrict existing advertising practices or the industry as a whole, as this would stymie growth and jeopardize employment opportunities and market participation for millions of individuals, including those in underserved and marginalized communities.

II. The Report Should Acknowledge That Responsible Data Use Empowers Underserved and Marginalized Communities

NTIA asks commenters: “How should regulators, legislators, and other stakeholders approach the civil rights and equity implications of commercial data collection and processing?”¹⁸ The ANA recommends an approach that bars true data misuse, as described in our discussion of Privacy for America’s *Principles for Privacy Legislation* below, but takes particular care not indirectly to eliminate the benefits data-driven advertising provides to historically marginalized and underserved communities. This balanced approach involves recognition that responsible data use promotes opportunities and visibility for underserved and marginalized communities while continuing to allow open data access for positive uses, including proactive outreach about important opportunities and identification of potential discriminatory impacts.

Data access and use permits myriad practices that directly benefit and empower marginalized and underserved communities. For example, members of the ANA’s Nonprofit Federation (such as the American Red Cross, Habitat for Humanity, The Salvation Army, and countless other organizations) use data to inform their provision of direct services and disaster recovery efforts, and to solicit investment in their ongoing work.¹⁹ In addition, the ANA’s members utilize data to promote visibility and inclusion of marginalized and underserved communities in advertising and broader media representation, as well as to ensure members of such communities receive information about items like personal care and food products that may be of interest.²⁰ Further, the ANA’s members rely on data to partner with minority-owned businesses, improve messaging to underserved and marginalized communities, and track progress on key diversity, equity, and inclusion goals.²¹ Responsible data use helps enable ANA’s members to reach underserved and marginalized communities in their preferred language

¹⁴ *Id.* at 4-5.

¹⁵ *Id.* at 11-12.

¹⁶ *Id.* at 12.

¹⁷ *Id.* at 13.

¹⁸ NTIA RFC Question 1 at 3718.

¹⁹ See, The ANA, *Nonprofit Federation*, located [here](#).

²⁰ See, The ANA, *Diversity, Equity, Inclusion, and Belonging Resource Center*, located [here](#).

²¹ See, e.g., *id.*; The ANA, *Alliance for Inclusive and Multicultural Marketing*, located [here](#).

via their preferred platforms, and determine where to place new business locations to reach underserved markets. For example, open data access helps inform a grocer to place a location in a food desert, and a transportation network to expand its services into previously underserved markets.

Consequently, overly broad restrictions on data access and use pose a discrete risk of harm to historically marginalized and underserved communities. Not only would such restrictions hinder companies from targeting their services appropriately and bar businesses from informing individuals about relevant product offerings, but such restrictions would also undermine crucial public health measures and fair lending and housing efforts. During the COVID-19 pandemic, data access and use permitted the Centers for Disease Control and Prevention (“CDC”), in partnership with the Ad Council, to educate high-risk communities regarding COVID-19 vaccinations,²² and further empowered the CDC to address disparities in COVID-19 prevention, treatment, and care among marginalized and underserved communities.²³ Similarly, government entities and their partners depend on data to determine where to focus outreach efforts regarding fair lending and housing opportunities, employment support and training programs, and provide support services. NTIA should take care that its Report does not jeopardize these important offerings and consequently exacerbate existing inequities by cutting off access to crucial data necessary to effectively serve historically marginalized and underserved communities.

III. The Report Should Recommend Enforcement of Existing Laws to the Extent Discrimination Occurs

In the RFC, NTIA asks how existing laws and regulations address the “privacy harms” experienced by underserved or marginalized groups, and if existing privacy and civil rights laws are being enforced.²⁴ The ANA agrees with NTIA that our laws should protect civil rights, bar discrimination, and protect individuals from misuses of data that result in discrimination or civil rights violations. Congress has enacted several laws that do so, including the Civil Rights Act of 1964, the Americans with Disabilities Act, the Fair Housing Act, the Equal Credit Opportunity Act, the Fair Credit Reporting Act, among others, as well as the Federal Trade Commission (“FTC”) Act’s prohibition on unfair and deceptive trade practices. These laws prohibit discrimination, provide well-established civil rights protections, and place safeguards on the collection and use of certain data types.

As such, these laws provide the basis for claims alleging illegal discrimination or civil rights violations in advertising distribution, in algorithmic functions, and other impermissible uses of data that further discriminatory ends. Indeed, these laws have already been used to remedy alleged discrimination in generating target audiences for online housing advertisements, to prohibit unexpected uses of health information, and to protect consumers when companies do

²² The Ad Council, *The Ad Council and COVID Collaborative Reveal ‘It’s Up To You’ Campaigns to Educate Millions of Americans about COVID-19 Vaccines* (Feb. 25, 2021), located [here](#); see also Jacqueline Howard, *Administration’s new Covid-19 vaccine ads target ‘high risk’ communities*, CNN (Oct. 25, 2022), located [here](#).

²³ U.S. Dept. of Health & Human Servs., *CDC Found Ways To Use Data To Understand and Address COVID-19 Health Disparities, Despite Challenges With Existing Data*, Report (July 2022), located [here](#).

²⁴ NTIA RFC Question 4 at 3719.

not employ sufficient safeguards to protect data from malicious actors.²⁵ By providing overarching protections, these laws are sufficiently flexible to apply to digital spaces and to the ever-evolving nature of technology and Internet-based practices. Accordingly, enforcement of these laws protects marginalized and underserved communities from discrimination in its pernicious forms on technology as it exists today, as well as the mechanisms malicious actors may attempt to utilize to discriminate and inflict civil rights harms in the future.

Given the robust civil rights and anti-discrimination protections provided by our existing laws, and the applicability of these laws to data misuse and other potential methods of digital discrimination, the Report should recommend continued enforcement of these laws in digital spaces, rather than a new legal regime. A new legal regime narrowly targeted to digital advertising and other commercial data collection and use practices is unnecessary, inefficient, and could unintentionally harm marginalized and underserved communities by disturbing established legal interpretations and eliminating the affirmative practices entities of all types use to ensure discrimination does not occur and that relevant massaging reaches these communities.

IV. The Report Should Encourage Federal Privacy Legislation That Incorporates Standards Successfully Employed in the Advertising Industry’s Self-Regulatory Efforts and Privacy for America’s *Principles for Privacy Legislation*

NTIA asks if any existing privacy or civil rights laws, regulations, or guidance documents “demonstrate an exemplary approach to preventing or remedying privacy harms, particularly the harms that disproportionately impact marginalized or underserved communities,”²⁶ and for comments to assess the degree to which “individuals [are] sufficiently capable of assessing and mitigating the potential harms that can arise from commercial data practices, given current information and privacy tools.”²⁷ For decades, protections for marginalized and underserved communities have been a pillar of self-regulatory frameworks the ANA has founded, supported, and administered. In addition, the ANA supports Privacy for America’s *Principles for Privacy Legislation*, which build upon and supplement existing protections for diverse, marginalized, and underserved communities in self-regulatory codes.

The ANA has a long history of leading self-regulatory efforts that protect diverse constituencies from privacy harms and also educate and empower consumers to make choices about their personal data. For example, existing self-regulatory principles, including the ANA’s *Guidelines for Ethical Business Practice* (“*Guidelines*”) and the DAA’s *Principles*, guide companies to use data responsibly and prohibit companies from using personal data to make eligibility determinations. The *Guidelines* prohibit the use of marketing data to declare someone ineligible for or impose adverse terms related to employment, credit, health care treatment, or insurance coverage.²⁸ Similarly, the DAA’s *Principles* prohibit entities from collecting, using, or transferring data collected from a computer or device regarding web viewing behaviors for the

²⁵ See Settlement Agreement, *United States v. Meta Platforms, Inc.*, Case No. 1:22-cv-05187 (June 21, 2022), located [here](#); Decision and Order, *In the Matter of Flo Health Inc.*, Docket No. C-4747, (F.T.C. June 17, 2021), located [here](#); Consent Order, *In the Matter of Drizly, LLC*, Docket No. C-4780 (F.T.C. Jan. 9, 2023), located [here](#).

²⁶ NTIA RFC Question 4(g) at 3179.

²⁷ NTIA RFC Question 1(b) at 3718.

²⁸ See The ANA, *Guidelines for Ethical Business Practice* (2020), located [here](#).

same purposes.²⁹ These self-regulatory programs restrict entities from using or transferring data in ways that could further discriminatory ends. The approach embodied in the advertising industry’s long and successful history of self-regulation has been praised and encouraged by past Administrations, the Congress, and independent regulatory agencies, and at times predated and helped to inform important legislative efforts, such as the Children’s Online Privacy Protection Act (“COPPA”).³⁰

The ANA’s Ethics Center enforces the *Guidelines* and assists with enforcing the DAA’s *Principles*, fields consumers’ complaints of non-compliant practices, and promptly responds and works directly with companies so they may come into compliance with the *Guidelines* and the DAA’s *Principles*.³¹ Where non-compliance with the *Guidelines* persists, the ANA refers companies to the FTC, or recommends that the DAA pursue a public case in partnership with the Better Business Bureau. In 2022 alone, the ANA processed nearly 10,000 consumer inquiries, working directly with companies to achieve compliance in the vast majority of instances and referring non-compliant cases to the FTC for further investigation and possible enforcement action.³² To date, the DAA has pursued 125 public cases to bring companies into compliance with its *Principles*.³³

To the extent that NTIA recommends a certain approach to data regulation in its Report, the Report should recognize the contributions of the self-regulatory standards that the ANA and its partners have successfully employed for years. Privacy for America’s legislative framework, the *Principles for Privacy Legislation* (“P4A Framework”), is a particularly apt model to emulate, as it incorporates and expands upon the approaches set forth in existing self-regulatory codes to codify robust protections for marginalized and underserved communities. The P4A Framework would flatly bar misuses of personal data that foster inequity, such as uses of data to discriminate in employment, credit, health care treatment, insurance, education admissions, financial aid, and housing contexts. In this way, the P4A Framework builds on the self-regulatory requirements embodied in the *Guidelines* and the DAA’s *Principles*. The P4A Framework would also explicitly prohibit the use of data related to race, color, religion, national origin, sexual orientation, or gender identity to discriminate against individuals by charging higher prices or rates for products or services, as well as uses of data to commit or assist in fraud or for stalking.³⁴ Data protection standards like these mitigate intentional misuses of data and unintended data vulnerabilities that may harm consumers, while empowering advertisers to continue providing equitable information access and the invaluable ad-supported content and services that are vital to underserved and marginalized communities.

²⁹ The DAA, *Self-Regulatory Principles for Multi-Site Data* (Nov. 2011), located [here](#).

³⁰ See Speech by Danny Weitzner, We Can’t Wait: Obama Administration Calls for A Consumer Privacy Bill of Rights for the Digital Age (February 23, 2012), located [here](#) (praising the Digital Advertising Alliance’s self-regulatory program as “an example of the value of industry leadership as a critical part of privacy protection going forward”).

³¹ See The ANA, *Ethics Compliance Report Reporting Period: July - December 2022 and 2022 Overview* (Feb. 2023), located [here](#).

³² See *id.*

³³ See DigitalAdvertisingAlliance.org, *Enforcement*, located [here](#).

³⁴ See Privacy for America, *Principles for Privacy Legislation Part 1: Section 3*, located [here](#).

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Thank you for the opportunity to submit Comments on this important topic. Please do not hesitate to contact us with any questions regarding this submission.